

Mistaken identity: check the court record first

Prepared for Alexandria Marie Example-Sampleton. SYNTHETIC EXAMPLE: not an actual person or case. Route: automatic-on-notice.

This is the court-notice route under section 610.145.1(2), not a petition packet. No CR301, FI-05 or proposed order is generated for this selection.

Ask the clerk of the court where the charge was last pending for the dismissal entry, docket and any expungement order. Explain that another person used your identity or that you were misidentified. Ask whether the prosecutor or dismissing judicial officer provided the dismissal notice and whether an expungement order was entered. Do not represent that notice or an order already exists without checking.

Keep a copy of the order and ask which listed record holders were notified. Check that the wrong entries have been removed from the relevant records. If an entry remains, send the responsible clerk or record holder the order and identify the entry. An automatic route does not mean that you must ignore an uncorrected record.

If no order was entered or the record remains unresolved, review the participant petition/written-motion route under section 610.145.1(1) in the court where the charge was last pending. The separate petition selection provides CR301 after confirming its statements. Seek legal help for disputed identity, a contested hearing, a denial or an appeal; this packet does not litigate those issues.

Authority: Missouri Revised Statutes section 610.145.1(1)-(2), .3 and .7. Official text:
<https://revisor.mo.gov/main/OneSection.aspx?section=610.145>

After an actual expungement order

Start only after the court has entered an expungement order under section 610.145. Obtain the actual order and check which charge and records it covers. A proposed CR311, this guide, or a dismissal by itself is not proof that an expungement order was entered. These steps also apply to an order entered through the court-notice route.

Court and agency notice: the clerk notifies the state and local agencies of the order. Ask the clerk which affected record holders were notified; do not certify that delivery occurred without confirmation. Keep the order and actual delivery responses. Compare each affected record with the order and identify any entry that remains incorrect.

Driver records, only if affected: contact the Missouri Department of Revenue using the contact on your driver record or its official driver-licensing channel. Give it the issued order and identify the related entries, points, suspension or revocation. Section 610.145.4 requires removal of those entries and reversal of administrative actions resulting from the expunged charge or conviction. Request the certified corrected driver history at no cost. If that charge or conviction caused a license suspension or revocation, request reinstatement at no cost. Verify the corrected history and actual license status; do not assume unrelated restrictions disappeared or drive before reinstatement is confirmed.

Other affected agencies, only if applicable: identify any resulting administrative action by the Department of Corrections or another state or local agency. Provide the actual order, identify the action and ask the responsible agency to confirm record expungement and reversal under section 610.145.5. The normal fee for reinstating a license or privilege resulting under this section is waived. Ask the agency to apply that waiver where it applies; this is not a blanket refund of every fee ever paid. Keep its written response and verify the resulting record or license status.

Insurance, only if an additional premium was charged because of insurance points resulting from the expunged charge or conviction: notify the insurer of the actual expungement and provide the order for verification. Request the additional premiums for the three-year period immediately before the court entered the expungement, not all premiums or a period measured from today. Identify the affected policy and supply available bills or premium notices. Ask the insurer to verify the expungement, calculate the applicable additional premiums and explain its response. No notice, verification, payment or refund amount is supplied or guaranteed by this packet. Section 610.145.6 supplies the conditional refund obligation.

Track what actually happens: keep dates of your real requests, delivery records, agency confirmations and any insurer response. Follow up on a specific remaining error with the order. For a disputed record, refusal, refund calculation or further litigation, take these materials to legal aid or counsel; do not fabricate completion or treat this guide as an enforcement order.

Authority: Missouri Revised Statutes section 610.145.3-.6.
<https://revisor.mo.gov/main/OneSection.aspx?section=610.145>